SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO

Law and Motion Calendar
Honorable Nicole S. Healy
800 N. Humboldt Street, San Mateo CA 94401
Department 28, Courtroom I
Wednesday, September 2, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. **Email Dept28@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5128 before 4:00 pm the court day before and follow the instructions on the message.**
2. **Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to: LawAndMotionReplyBriefs@SanMateoCourt.org**

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

EVERYONE APPEARING BY ZOOM MUST USE A CAMERA

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

https://sanmateocourt.zoomgov.com/ **Meeting ID: 160 226 9361 Password: 289347**

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case	
2:00 PM LINE 1		
19-CIV-02501	TODD YANCEY VS EDWIN BLUE	
TODD YANCEY		PRO PER
EDWIN BLUE		DYLAN J. BYRD

MOTION FOR SUBSTITUTION OF SUCCESSOR IN INTEREST FOR DECEASED DEFENDANT EDWIN BLUE AND TO CONTINUE THE ACTION [CODE CIV. PROC., §§ 377.11, 377.20, 377.21, 377.41]

TENTATIVE RULING:

Plaintiff Todd Yancey's Motion for Substitution of Successor in Interest is **DENIED**. Plaintiff's Request for Judicial Notice is **GRANTED**, but not for the truth of the matters therein.

Defendant Carol Blue Hitchens's, individually and as Trustee of the Blue Family Trusts, Request for Judicial Notice is **GRANTED**, but not for the truth of the matters therein.

Hitchens's Objections to Evidence are ruled on as follows: No. 4 – sustained as to paragraph 10, overruled as to exhibit D; No. 5 – overruled as to the first sentence of the paragraph, sustained as to the second sentence; No. 6 – overruled as to ¶ 13 and exhibit E, sustained as to ¶¶ 14-15; No. 10 – sustained as to ¶ 16 and the first sentence of ¶ 17, overruled as to the second two sentences of ¶ 17 and ¶ 18 in its entirety; No. 11 – sustained as to plaintiff's description of the exhibit on the first page of the exhibit, overruled as to the rest of the exhibit; Nos. 12-13 – overruled.

A. Background

This is an action for damages based on the alleged conversion of intellectual property and trade secrets. Plaintiff alleged that he and the now-deceased Edwin Blue were co-partners in the creation of a computer system, but that Dr. Blue and other defendants converted and stole plaintiff's intellectual property and partnership interest and failed to pay plaintiff amounts agreed and due. (SAC, ¶¶ 2-3.)

On November 22, 2023, the court sustained without leave to amend Hitchens's demurrer to plaintiff's FAC as to the first through eleventh causes of action on the grounds that they were time-barred. (CMO #21, filed Nov. 22, 2023, at p. 2.) The court granted leave to amend to plead a cause of action for fraudulent transfer against Hitchens. (*Id*., at p. 3.)

On May 2, 2023, Edwin Blue died. Code of Civil Procedure, section 366.2, subdivision (a) provides that:

> If a person against whom an action may be brought on a liability of the person, whether arising in contract, tort, or otherwise, and whether accrued or not accrued, dies before the expiration of the applicable limitations period, and the cause of

> action survives, an action may be commenced within one year after the date of death, and the limitations period that would have been applicable does not apply.

(Code Civ. Proc., § 366.2, subd. (a).)

Plaintiff states in his motion that he attempted several times to open administration of Edwin Blue's estate to present a creditor's claim, but that "the probate court concluded that plaintiff — the decedent's litigation adversary and a self-interested creditor — was not a proper person to be appointed special administrator, together with related procedural deficiencies." (MPA, at p. 13:23-25.) Plaintiff did not file a valid creditor's claim within the one-year statutory period provided by Section 366.2.

On August 21, 2024, the court sustained Hitchens's demurrer to plaintiff's SAC without leave to amend holding that "Plaintiff's first eleven causes of action are time-barred based on plaintiff's failure to file a proper creditor's claim by the one-year anniversary of Edwin Blue's death, therefore, the twelfth cause of action for intentional fraudulent transfer also fails." (Order filed Aug. 21, 2024, at p. 2.)

On February 24, 2025, the court entered an order dismissing the FAC and SAC as to Hitchens, individually and as Trustee of the Blue Family Trusts and entered judgment "in favor of CAROL BLUE in all capacities and against plaintiff Todd Yancey." (Judgment of Dismissal, filed Feb. 24, 2025, at p. 2.)

On June 3, 2026, the court entered an order after a CMC which memorialized the following rulings:

> The time to move for reconsideration of the order sustaining the demurrer in the 2019 matter has long since passed, as has the time to file a notice of appeal. (The court's files show that a notice of entry of the judgment of dismissal in the 2019 case was filed on February 26, 2025, and served on Todd Yancey electronically by Carol Blue Hitchens's counsel that same day. The notice of entry of the judgment of dismissal in the 2024 case as to defendants Robert Blue and Antonia Hitchens was filed on June 17, 2025, and served electronically on plaintiff by their counsel that same day. The notice of entry of the judgment of dismissal in the 2024 case as to Carole Blue Hitchens was filed on June 17, 2025, and served electronically by her counsel on plaintiff that same day.) Because the judgments are final in both cases, the court does not believe it has jurisdiction to reconsider the order sustaining the demurrer or the judgments. The court therefore will not reconsider the order sustaining the demurrer in the 2019 case or vacate the judgments in either case.
>
> Plaintiff may file a "Motion for Substitution," seeking to substitute Carol Blue Hitchens as the defendant in the 2019 case in lieu of the deceased defendant, Dr. Edwin Blue.

(Order After Hearing, filed June 3, 2026, at p. 2.)

B. Discussion

Having now reviewed the parties' filings and relevant legal authority, the court finds that plaintiff's motion for substitution fails based on Code of Civil Procedure, section 366.2, and the court's prior demurrer orders and subsequent judgments.

"Section 366.2 is a 'general statute of limitations for all claims against a decedent.'" (*Dacey v. Taraday* (2011) 196 Cal.App.4th 962, 980 (*Dacey*), citing *Wagner v Wagner* (2008) 162 Cal.App.4th 249, 255.) Code of Civil Procedure section 366.2, subdivision (a) states,

> If a person against whom an action may be brought on a liability of the person, whether arising in contract, tort, or otherwise, and whether accrued or not accrued, dies before the expiration of the applicable limitations period, and the cause of action survives, an action may be commenced within one year after the date of death, and the limitations period that would have been applicable does not apply.

Subdivision (b) provides that the limitations period "shall not be tolled or extended for any reason except as provided in any of the following, where applicable: [¶] ... [¶] (2) Part 4 (commencing with Section 9000) of Division 7 of the Probate Code (creditor claims in administration of estates of decedents)." Further, "[u]nder a claims statute, such as Probate Code section 9100, the party has an obligation to file a claim if there is any liability or legal obligation." (*Dacey*, *supra*, 196 Cal.App.4th at p. 982.) It is undisputed that plaintiff did not file a claim.

Apparently conceding that his motion is barred by Code of Civil Procedure, section 366.2, plaintiff argues that Carol Hitchens is estopped from invoking that section based on her failure to deliver Edwin Blue's will within 30 days of his death, failure to petition for administration, and alleged concealment of these intentions from plaintiff. Plaintiff argues that this resulted in injury to him in the form of no estate being opened, no personal representative being appointed, and no claims process being completed by him. Plaintiff also argues that Hitchens is estopped because she kept from plaintiff "that a will existed, what it provided, and whom it nominated." (Reply, at p. 11:6-7.)

Under Probate Code, section 8000, "[a]t any time after a decedent's death, any interested person ***may commence*** proceedings for administration of the estate of the decedent . . ." (Prob. Code, § 8000, subd (a), emphasis added.) The statute therefore allows administration but does not require it. Section 8200 provides that within 30 days of knowledge of the death of the testator, the custodian of a will shall deliver it to the court clerk and deliver a copy to the person named as the executor and provides that a custodian who fails to comply shall be liable for damages. Plaintiff has failed to demonstrate that he was damaged by Hitchens's failure to lodge the will within 30 days of Edwin Blue's death.

As plaintiff admits, he attempted to open administration but was unsuccessful, therefore acknowledging that no action or inaction on Hitchens's part caused him to refrain from those efforts. As plaintiff also admits, his attempts failed due to deficiencies in his filings. The minute orders from the Probate Court attached to plaintiff's declaration and the record in this case do not support plaintiff's argument that it was Hitchens's fault he was unable to file a valid creditor's claim by the one-year deadline. The only finding that the record supports is that plaintiff failed to follow the proper procedure for filing a valid creditor's claim and the Code of Civil Procedure, section 366.2 deadline ran.

Plaintiff's arguments pursuant to Probate Code, sections 19400-19401, and Code of Civil Procedure, sections 377.40 and 377.41 also fail based on Section 366.2.

Each of these statutes is conditioned on a claim having survived and not abated. Here, the claims against decedent Edwin Blue have not survived because plaintiff did not file a creditor's claim within one year of Dr. Blue's death. These statutes therefore do not support the instant motion.

In his reply, plaintiff argues that Probate Code, section 19001 "conditions liability on the probate estate being 'inadequate,'" and that in *Spears v. Spears* (2023) 97 Cal.App.5th 1294, 1303-1305 (*Spears*), the court held that "claims against a decedent may be asserted where no probate proceeding has been opened." (Reply, at pp. 4:18-19, 5:20-21.) Plaintiff also argues that Probate Code, section 850 provides the "companion petition for trust property claimed to be subject to a creditor of the deceased settlor." (*Id*., at p. 5:16-17.) Plaintiff again argues that Carol Hitchens is Edwin Blue's successor-in-interest under Code of Civil Procedure, section 377.11.

Plaintiff fails to note that in *Spears* the court addressed the Section 366.2 statute of limitations and held that the creditor's claim as to one alleged oral agreement but not as to the second was time-barred. (*Spears*, *supra*, 97 Cal.App.5th at p. 1302; see also *Embree v. Embree* (2004) 125 Cal.App.4th 487, 494 [Probate Code section 19400 "permits a creditor to proceed against property distributed to the beneficiaries of the judgment debtor's revocable living trust, subject to the one-year limitation period of section 366.2."], citing cases.)

Dr. Blue died over three years ago. Plaintiff cannot ignore the effect of Section 366.2. Plaintiff's claims are time-barred and the motion is therefore denied.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 2

20-CIV-01712 SAMANTHA LIAPES VS FACEBOOK, INC.

SAMANTHA LIAPES	JAHAN C. SAGAFI
FACEBOOK, INC.	CHRISTOPHER CHORBA

VERIFIED APPLICATION OF MICHAEL C. DANNA TO APPEAR AS COUNSEL PRO HAC VICE

TENTATIVE RULING:

The pro hac vice application filed by Michael C. Danna is **GRANTED**.

2:00 PM LINE 3

22-CIV-03763 ETZEL WILLIAMS, III, ET AL VS. PENINSULA CORRIDOR JOINT POWERS BOARD, ET AL

ETZEL WILLIAMS	JESSICA DANIELSKI
PENINSULA CORRIDOR JOINT POWERS BOARD	DALE L. ALLEN

DEFENDANT CITY OF BURLINGAME'S MOTION TO TAX COSTS

TENTATIVE RULING:

Defendant City of Burlingame moves to tax over $111,416.47 of the $164,932.48 costs sought by plaintiffs Etzel Williams III and Desjaunae Williams in connection with the trial of the action for dangerous condition of public property relating to the death of their mother, Cynthia Robinson, at railroad crossing in the City of Burlingame. Defendant's motion is **GRANTED in part**.

Plaintiffs are reminded that exhibits must be properly bookmarked. That is, "electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 ["Failure to bookmark exhibits to electronically filed documents may result in rejection of the party's e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion."].)

A. Background

The trial was bifurcated, with liability tried first. On August 22, 2025, the jury returned a verdict finding the City's property was in a dangerous condition that caused Ms. Robinson's death, apportioning 25% fault to the City and 75% to Ms. Robinson. On August 25, 2025, the court granted the City's motion for directed verdict as to plaintiffs Darryl Williams and Taniesha Williams because they had not met their burden of proving damages. The jury returned a damages verdict of $4,000,000, which was reduced by the jury's finding of Ms. Robinson's 75% comparative fault, for a total judgment of $1,000,000, in favor of Etzel Williams III and Desjaunae Williams apportioned equally between them.

Plaintiffs filed their Memorandum of Costs on October 23, 2025, seeking a total of $164,932.48 in costs. The City moved to tax costs on March 26, 2026.

The City argues that it is a prevailing party as to Darryl Williams and Taniesha Williams because they did not recover any damages.

Plaintiffs argue that they are the prevailing party because they received a net monetary recovery, that is, the judgment in favor of Etzel Williams III and Desjaunae Williams.

The parties also dispute the effect of plaintiff's joint 998 offer. The offer, for $999,999.00 was served on July 25, 2025; plaintiffs made their opening statement on August 8, 2025.

B. Plaintiffs' 998 Offer

The City argues that the 998 offer was defective because it was made jointly, on behalf of all four plaintiffs. Plaintiffs cite *McDaniel v. Asuncion* (2013) 214 Cal.App.4th 1201 (*McDaniel*) for the proposition that a joint offer in a wrongful death case is appropriate because of the unitary nature of the claim. *McDaniel* explains that "a wrongful death cause of action is atypical. Under California law, either the heirs or the personal representative on behalf of the heirs may bring a single joint indivisible action for wrongful death. [citation] This means that all heirs should join in a single action and there cannot be a series of suits by heirs against the tortfeasor for their individual damages. [citation] Any recovery for wrongful death is in the form of a lump sum, i.e., a single verdict is rendered for all recoverable damages." (*McDaniel*, *supra*, at pp. 1206-1207, citations omitted; see also *Cross v. Pacific Gas & Electric Co*. (1964) 60 Cal.2d 690, 692 (*Cross*) [stating that former Code of Civil Procedure, section 377, now sections 377.20, 377.40, 377.60, 377.61, 377.62 "is a procedural statute establishing compulsory joinder and not a statute creating a joint cause of action."].)

The City cites contrary authority, holding that a joint, unallocated, 998 offer in a wrongful death case is invalid. (See MPA, at pp. 15, citing *Gilman v. Beverly California Corp*. (1991) 231 Cal.App.3d 121 and *Hurlbut v. Sonora Community Hospital* (1989) 207 Cal.App.3d 388.)

Although the appellate courts differ as to whether a joint, unallocated, 998 offer is invalid, the cases are fact-specific. (See *Gonzalez v. Lew* (2018) 20 Cal.App.5th 155, 164-170 (*Gonzalez*) [discussing cases].) In *Gonzalez*, notwithstanding that the joint 998 offer was made by plaintiffs who were heirs of two different decedents, the court found that it was not invalid. The court likewise finds that the joint offer was valid, given the unity of interest among the plaintiffs, Ms. Robinson's four children.

C. Plaintiffs are the Prevailing Party Only as to Etzel Williams III and Desjaunae Williams

The City of Burlingame contends that because two of Cynthia Robinson's four children, Darryl Williams and Taniesha Williams, proved liability but did not testify at the damages phase of the trial and a directed verdict was entered against them, the City is the prevailing party as to them. Plaintiffs counter that a wrongful death claim is unitary and that because all plaintiffs proved liability they are, collectively, the prevailing party.

Although this case involved a tragic death and was brought by the decedent's heirs, it did not involve a wrongful death cause of action. Rather, notwithstanding that the jury awarded plaintiffs a single undivided damages award, because the defendants were public entities, the plaintiffs' claims were for dangerous condition of public property, not wrongful death.

Plaintiffs argue that they proved liability as to all four of the plaintiffs. However, because a "prevailing party" includes "a defendant as against those plaintiffs who do not recover any relief against that defendant" (Code Civ. Proc., § 1032, subd. (a)(4)) and Darryl Williams and Taniesha Williams recovered no relief against the City, the City is therefore the prevailing party as to these two plaintiffs. Accordingly, the court further finds that while Etzel Williams III and Desjaunae Williams are the prevailing parties as against the City, the City is the prevailing party against Darryl Williams and Taniesha Williams.

D. Plaintiff's Requested Costs

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ladas v. California State Auto Assn*. (1993) 19 Cal.App.4th 761, 774 (*Ladas*).) "[B]ecause the right to costs is governed strictly by statute [citation] a court has no discretion to award costs not statutorily authorized." (*Ibid*., citation omitted.)

While some costs are statutorily authorized, others are prohibited, and still others are left to the court's discretion. (Code Civ. Proc., § 1033.5.)

*1. **Plaintiffs' Counsel's Travel and Lodging Expenses***

The City argues that plaintiffs' counsel, Nathan Karlin's, expenses should be taxed because plaintiffs did not need to retain Mr. Karlin, a resident of Kansas, who was admitted pro hac vice.

Mr. Karlin's expertise in railroad litigation was not "merely convenient" but reasonably necessary to the case against Caltrain (which was settled) and to that against the City. While the lawsuit involved, ultimately, the question of whether the City's timing of its lights was a dangerous condition, the lights in question are located at a complex railroad crossing. The issues relating to the timing of the City's traffic lights and Caltrain's signaling were complicated and required both fact and expert witnesses to explain the circumstances surrounding Ms. Robinson's death to the jury. Mr. Karlin's expertise with railroad litigation was "reasonably necessary" to plaintiff's presentation of this factually and legally complex case.

Plaintiffs' counsel seek $11,510.82 in travel, lodging, and meal expenses for Mr. Karlin (which includes $49.25 in unspecified trial supplies) and $3,186.92 for Jessica Danielski in travel, lodging, and meal expenses to attend the trial. (See Opp., Danielski Decl., exh. 15 at pp. 274- 276.)

Meal expenses incurred during a trial to which counsel must travel are compensable as costs. (See *Doe v. Los Angeles County Dept. of Children & Family Services* (2019) 37 Cal.App.5th 675, 698 (*Doe*).) In *Doe*, the appellate court affirmed travel expenses for a paralegal who had worked on the case from the begging and prepared and filed documents during trial was reasonably necessary to conduct the litigation, and allowed her meals and lodging expenses during the trial. (*Doe*, *supra*, 37 Cal.App.5th at p. 696, citing Code Civ., Proc., § 1033.5, subd.

(c)(2).) Here, because both counsel did not leave within a reasonable distance of the court, travel, lodging, and meal expenses were likewise necessary and reasonable.

2. Deposition Costs for Manito Velasco and Tod Eidson

Manito Velasco is a local resident who was deposed; the court granted the City's motion precluding his testimony at trial. (Gilbert Decl. iso Mot. to Tax Costs, ¶ 9.) The City seeks to tax deposition and service costs relating to him, as follows: service of process ($100.32); deposition ($2,243.65); and witness fee ($37.00) for Mr. Velasco. (See Pltfs.' Memo. of Costs, at pp. 3-4.) Until the court ruled on the City's motion the parties could not have known whether the court would exclude his testimony. Accordingly, the court will not tax these costs.

The City also moves to tax the deposition costs for Tod Eidson. Apparently before he was served with a subpoena, plaintiffs learned that Mr. Eidson had suffered a stroke and was incapacitated. Accordingly, he was not deposed. (Gilbert Decl., ¶ 10; Reply at p. 7.) Plaintiffs did not incur deposition costs for Mr. Eidson, and therefore the court taxes those costs in the amount of $183.02 for service of process; $40.00 for witness fees; and $1,375.65 for transcript and video fees. (See Pltfs.' Memo. of Costs, at pp. 7, 9.)

3. Videotaped Depositions

The use of videotaped deposition testimony is now wholly routine and necessary. Where the deponent is not present at trial, it permits the jury to evaluate their demeanor and credibility. Where the deponent is present and is impeached or rehabilitated with their deposition testimony, it likewise permits the jury to determine whether the statements at deposition or at trial are the more credible. (See *Seever v. Copley Press, Inc*. (2006) 141 Cal.App.4th 1550, 1557.) The court will not tax videotaped deposition costs.

4. Service of Process and Witness Fees

The City challenges the costs sought for service of process and witness fees.

It was reasonable for plaintiffs to subpoena Kevin Aguigui. His employer, Kimley-Horn was not a party by the time of trial and absent a subpoena he might not have appeared.

Plaintiffs have not explained the generic references to the following service of process fees: One Legal Civil Subpoena & Witness Fee, San Mateo County Sheriff's Office. (See Reply, at p. 8.) Those fees will be taxed in the amount of $768.22. (See Pltfs. Memo. of Costs, at p. 9.)

Further, plaintiffs have not explained the witness fees for anyone except Kevin Aguigui on Attachment 8a(6). (See Pltfs. Memo. of Costs, at p. 10.) Accordingly, all of those fees are taxed, except for the fees for Mr. Aguigui; the amount taxed totals $1,126.22.

5. *Expert Witness Fees*

The City challenges the expert witnesses' fees as unwarranted under the 998 offer and as unreasonable. As noted above, the court found that the offer was valid.

The City also contests the timing and reasonableness of plaintiffs' experts' fees and expenses (see Danielski Decl., exh. 8b), specifically the requested reimbursements for George Gavalla ($9,805.64); Gary Norris ($25,739.24) and Erwin Boer ($42,696.83). The City asserts that these individual were deposed on June 30, 2025; June 24, 2025; and July 1, 2025, respectively — before the 998 offer was served. (Gilbert Decl., ¶ 7.) The 998 offer attached as exhibit A to the Gilbert Declaration states that it was served on July 25, 2025. The court presumes that the experts' fees and costs for their depositions were addressed at the time their depositions were taken, pursuant to Code of Civil Procedure, sections 2034.430-2034.460.

Plaintiffs' Memorandum of Costs does not supply any detail concerning the fees sought for the three experts. However, plaintiffs supplied some detail in their opposition to defendant's motion.

George Gavalla's fees for 5.5 hours at $350/hour, totaling $1,925, plus travel expenses of $1,880.64, which predate the 998 offer are taxed. The remaining fees and expenses including travel to and from California for trial testimony are reasonable. (See Opp., Danielski Decl., exh. 8b at p. 135.)

Gary Norris has supplied no information about the dates on which he spent 40 hours in "prep/review." Because the invoice period is listed as August 2025, the court therefore will not tax those fees. However, the following expenses are not recoverable as costs: Gary Norris's expenses for canceling his attendance at a conference, in the among of $7,662.94, and travel expenses to San Francisco for an unidentified person named "Dariel," of $396.21. (See Opp., Danielski Decl., exh. 8b at p. 131.)

Dr. Erwin Boer's fees post-dating July 25, 2025 appear reasonable, however, his $10,146.83 in expenses lack any supporting detail. (See Opp., Danielski Decl., exh. 8b at p. 134.) The court will tax the pre-July 25, 2025 fees, which amount to 14.8 hours at $400/hour = $5,920. Further, given that Dr. Boer supplied no information concerning his travel expenses, the court cannot determine their reasonableness, and they are taxed in their entirety.

6. *Other Expenses*

Defendant objects to plaintiffs' request for $16,245.11 in costs for models, enlargements, and photocopies of exhibits, noting that defendant spent $678.11 in photocopying trial exhibits. (See Opp., Danielski Decl., exh. 13, at pp. 154-163.)

Litigation support vendor services are recoverable as costs. (*Doe*, *supra*, 37 Cal.App.5th at p. 696.) Those include preparation of exhibits and electronic document presentation. (*Green v. County of Riverside* (2015) 238 Cal.App.4th 1363, 1374 [affirming award of $40,610.68 in paralegal costs that "reflected amounts defendants incurred for preparation and presentation of electronic evidence, including videos of deposition testimony, exhibits and excerpts from audio recordings, at trial. . . . Use of such technology, including a technician to monitor the equipment and quickly resolve any glitches, has become commonplace, if not expected by jurors. [citation] The trial court did not abuse its discretion in allowing these costs as reasonably helpful to aid the jury."].)

To the extent that the court has not addressed other specific items of costs identified by the City, the parties are to meet and confer about those items.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, the City's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 4

24-CIV-00086 ANTONIO URRUTIA VS BLVD RESIDENTIAL INC.

ANTONIO URRUTIA	DAVID S. WINSTON
BLVD RESIDENTIAL INC.	HELENE A. SIMVOULAKIS

MOTION FOR FINAL APPROVAL OF CLASS SETTLEMENT AND FOR ATTORNEYS' FEES AND COSTS

TENTATIVE RULING:

Plaintiffs' motion for final approval of the Class Action and PAGA Settlement is **GRANTED**. The court sets a final compliance hearing for March 3, 2027 at 2:00 p.m.

This is a class and representative action for alleged wage and hour law violations.

On January 6, 2026, this court granted preliminary approval of the class action and representative action settlement between plaintiff Antonio Urrutia and defendants BLVD Residential, Inc. (BLVD Residential) and Debra O'Toole (together, defendants).

As set forth in the declaration of Gavin Brown on behalf of the claims administrator, ILYM Group, Inc. (ILYM), on February 3, 2026, ILYM sent notice via first-class U.S. mail to the 419 individuals on the class list provided by defendants' counsel. (Brown Decl., ¶ 7.) Mr. Brown reports that notice was successfully delivered to all but nine class members, and that ILYM received one timely request for exclusion, one untimely request for exclusion, no objections and no disputes. (*Id.*, ¶¶ 11-15.)

A. The Court Approves the Settlement

In reviewing the evidence presented, the court finds that all the conditions for final approval have been met and gives final approval to the settlement. (Code Civ. Proc., § 382; *Richmond v. Dart Industries* (1981) 29 Cal.3d 462, 470.)

The Class Members were provided proper notice as set forth in the declaration of Mr. Brown. The class is ascertainable in that defendants sent ILYM class data with a final class list from which ILYM was able to send notice. There is a community of interest in that common questions of law and fact predominate involving whether Defendants violated wage and hour laws. For settlement purposes, this community of interest is sufficient. Plaintiff's claims are typical of the class claims because he is alleged to have suffered the same injury as other class members. Plaintiff adequately represented the class, as set forth in his declaration and in having experienced class counsel.

The settlement avoids the risk of the uncertainty of litigation. The settlement is fair adequate and reasonable. The law favors settlement and the fact that the class might be able to obtain more from a trial must be balanced against the risk of not having a class certified, receiving less than the settlement, including a defense verdict, the time and money that it would take to go to trial and through a potential appeal, and the potential for a change in law. The declaration of David S. Winston demonstrates that he has weighed the risks and benefits of proceeding with this case and concluded that the settlement is fair and reasonable. The fact that out of 419 Class Members, only one timely requested to opt out and none objected supports approval of the settlement.

B. The Court Grants Attorneys' Fees, Costs and Service Award

The court awards Class Counsel's requested fees of $100,000, which is equal to one-third of the Gross Settlement Amount, and awards requested costs of $16,731.91. The court also grants plaintiff's requested service award of $5,000.

"In determining what percentage is 'reasonable' for class counsel, courts commonly consider:

- the percentage likely to have been negotiated between private parties in a similar case (e.g., 30-40% in tort cases);
- percentages applied in other class actions (usually around 25%) (see *Bellinghausen v. Tractor Supply Co.* (ND CA 2015) 306 FRD 245, 260-261—9th Cir. has "consistently approved a 'benchmark' award of 25 percent of the common fund"; *Consumer Privacy Cases* (2009) 175 CA4th 545, 557-558, 96 CR3d 127, 136-137 & fn. 13 (citing studies that average of reasonable awards is 25%-33%));
- the quality of class counsel; and
- the size of the award. [See *In re Ikon Office Solutions, Inc. Secur. Litig.* (ED PA 2000) 194 FRD 166, 193]

(Weil & Brown, Cal. Prac. Guide: Civ. Pro Before Trial (Rutter, June 2026 Update) ¶ 14:145.3.)

"Courts often cross-check fee awards using both methods: i.e., a lodestar approach as compared to a percentage of the common fund approach. [*In re Consumer Privacy Cases* (2009) 175 CA4th 545, 557, 96 CR3d 127, 136; *Laffitte v. Robert Half Int'l Inc.* (2016) 1 C5th 480, 504, 205 CR3d 555, 574 — lodestar cross-check provides a mechanism for bringing objective measure of the work performed into the calculation of reasonable attorney fee; *In re Apple Inc. Device Performance Litig.* (9th Cir. 2022) 50 F.4th 769, 784—although cross-check is discretionary, federal courts are encouraged to cross-check fee awards using both methods, particularly when using percentage-of-recovery method]. In cross-checking, courts are not required to scrutinize hours as closely as in a traditional lodestar calculation, but may use 'counsel declarations summarizing overall time spent, rather than demanding and scrutinizing daily time sheets in which the work performed was broken down by individual task.' [*Laffitte v.*

Robert Half Int'l Inc., *supra*, 1 C5th at 505, 205 CR3d at 574].” (Weil & Brown, *supra*, at ¶ 14:145.2a.)

The parties mediated with third-party mediator Mark Peters on October 21, 2024. (MPA, at p. 2:22-23.) The parties did not reach a settlement at that time and continued to engage in formal discovery. (*Id*., at pp. 2:23-3:1.) BLVD Residential was experiencing financial difficulties in relation to payments for a separate class action, but once it restructured the payment plan in that case, the parties in this case were able to have more serious settlement negotiations. (*Id*., at p. 3:1-7.) The parties scheduled a second mediation session and were able to reach a settlement through direct negotiations prior to the session. (*Id*., at p. 3:8-11.)

Plaintiff states that BLVD Residential provided information about the class size and number of pay periods/workweeks through formal discovery. (MPA, at p. 3:11-16.) Based on this information, Class Counsel was able to make determinations as to the number of class members who had experienced various alleged violations. (*Id*., at pp. 3:17-4:6.) BLVD Residential also provided time and pay data for the class and plaintiff hired a damages expert to analyze those records. (*Id*., at p. 4:7-11.)

The estimated average net settlement award for each class member, including the aggrieved employees' $7,500 share, is $348.80, the maximum estimated award is $645.39, and the minimum estimated award is $7.96. (MPA, at pp. 8:26-9:3.)

Class Counsel David Winston estimates that he spent 137.60 hours on this matter resulting in a lodestar of $120,400. (Winston Decl., ¶ 34.) Mr. Winston has provided a summary list of tasks as well as redacted billing records which the court finds reasonable. (*Id*., at ¶¶ 33-34, exh. 4.) Mr. Winston estimates that he will spend an additional three hours of work on this matter, resulting in a lodestar of $123,025 and a negative multiplier of 0.8128. (*Id*. at ¶ 35.)

Mr. Winston requests an hourly rate of $875, a rate which he argues this court and Alameda County Superior Court have found reasonable, and which has not increased in several years. (*Id*., at ¶¶ 26-29, exhs. 1-2.) The requested rate is reasonable. Mr. Winston notes that another attorney, Joe Marshall, worked on this matter, but Mr. Winston has written off his time because Mr. Marshall was a first-year attorney, some of whose work had to be redone and who has since left the firm. (*Id*., ¶ 36.)

Based on the parties' participation in formal discovery, the risks involved in this matter based on BLVD Residential's difficulty making payments in a previous class action, the result of the lodestar cross-check including the reasonableness of Class Counsel's hourly rate and billed hours, Class Counsel's exercise of discretion in omitting Mr. Marshall's hours, and the estimated recovery for the class, the court finds the requested fees are reasonable.

As for costs, Class Counsel provides a list of costs as well as invoices and receipts. The largest costs incurred were for expert analysis and mediation. The costs are reasonable and should be awarded.

Plaintiff estimates that he spent 40.2 hours on the action, including researching possible claims and searching for relevant documents, discussing the case with counsel, setting aside time to be available during mediation, reviewing the settlement, and helping with the preparation of his declarations for preliminary and final approval. (Urrutia Decl., filed July 2, 2026, ¶ 11.) Plaintiff's request is reasonable.

C. Proposed Order

The parties ask the court to determine whether to grant class member Deja Herrera's untimely request for exclusion from the class. (Proposed Order, ¶ 6.) Ms. Herrera's request was filed almost a month after the response deadline, and she did not provide an explanation for the untimeliness of her request to opt-out. Ms. Herrera is therefore included in the class.

D. Uncashed Checks

ILYM Group, Inc., is ordered to cancel all checks that have not been cashed by the deadline to do so, and in accordance with California Code of Civil Procedure, section 384, the funds (and any interest accrued thereon) associated with such canceled checks shall be sent by ILYM Group to CASA of San Mateo County, noting that such funds are to be used in San Mateo County.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiffs' counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 5

24-CIV-04529 CHUNYU TAN VS. YANG MIN YANG, ET AL

CHUNYU TAN	X. YOUNG LAI
YANG MIN YANG	JONATHAN E. MADISON

MOTION TO COMPEL DEFENDANT YANG MIN YANG TO PROVIDE RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES (SET TWO, NO. 17-26); REQUEST FOR IMPOSING MONETARY SANCTIONS AGAINST DEFENDANT AND HIS ATTORNEY IN THE AMOUNT OF $3,000.00.

TENTATIVE RULING:

For the reasons stated below, plaintiff Chunyu Tan's "Motion to Compel Defendant Yang Min Yang to Provide Responses to Plaintiff's Special Interrogatories (Set Two, No. 17-26)" and "Request for Imposing Monetary Sanctions against Defendant and His Attorney in the Amount of $3,000," filed March 13, 2026, is **GRANTED in part**. (Code Civ. Proc. § 2023.010, et. seq. [discovery misuse].)

A. Service of the Motion and Defendant's Response

Because the court had questions about whether this Motion was properly served, counsel were ordered to appear on August 5, 2026 and the court permitted defendant's counsel to file a responsive brief. He submitted an omnibus opposition to the four motions to compel as well as a declaration on August 20, 2026. No discovery responses were submitted along with defendant's opposition. Instead, defendant's counsel has asked for additional time to respond. He argues that his client's injuries in December 2024 and March 2025 should excuse the failure to respond. Defendant's counsel offers no explanation for any further delay. (See Declaration of Jonathan E. Madison in Opp. to Pltfs.' Requests for Monetary Sanctions Against Counsel of Record, ¶¶ 4-13.) However, defense counsel argues against the court imposing sanctions against counsel of record on the ground that he "did not advise Defendant Yang Min Yang to engage in any of the conduct for which Plaintiff seeks sanctions." (*Id.*, ¶ 20.)

B. Background

Plaintiff Chunyu Tan's August 26, 2024 First Amended Complaint (FAC) alleges that in 2022, plaintiff loaned $500,000 to defendants Yang Min Yang and Che Ping Tam pursuant to a Promissory Note calling for annual interest of 12%. The loan allegedly was secured by a Deed of Trust on real property located in San Francisco that was owned by defendants Yang and Tam. The FAC alleges that at the time of the 2002 loan, defendants concealed their precarious financial status and the fact that their San Francisco property, which secured the loan, had a superior lien. The first lienholder allegedly later foreclosed on the San Francisco property and plaintiff lost her security interest in the $500,000 loan. Plaintiff alleges that defendants still owe $505,000 on the Note, plus interest and other fees and charges.

As of December 2025, defendants Che Ping Tam and Y & W Investment LLC had defaulted, leaving Yang Min Yang as the only remaining active defendant.

The FAC asserts causes of action for (1) breach of contract, that is, breach of the Promissory Note; (2) fraud as to the alleged concealment of the first lien on the San Francisco property; (3) fraudulent transfer; and (4) conspiracy.

Plaintiff asserts that defendant has not supplied any responses to plaintiff's Special Interrogatories, Set No. Two, Nos. 17-26, which were served on December 14, 2025. (See Separate Statement iso Motion.) Defendant's only explanation for his failure to respond to this discovery is that he was injured in December 2024 and again in March 2025. With this motion, plaintiff seeks to compel responses to plaintiff's Special Interrogatories (Set Two), Nos. 17-26, as well as monetary sanctions.

C. Law Governing Sanctions for Discovery Misuse

"It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434.) The goal of a self-executing discovery system is stymied when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291.) Parties are reminded that "a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Id.*, at p. 1294.)

Code of Civil Procedure, section 2023.030 provides that, to the extent authorized by any particular discovery method, the court may impose monetary, issue, evidence or terminating sanctions. Code of Civil Procedure, sections 2030.300, subdivision (e) and 2031.310, subdivision (i) state that if a party fails to obey and order compelling further responses, the court may make those orders that are just, including the imposition of an issue, evidence or terminating sanction.

Whether to grant a sanction is entirely within the discretion of the court. (Weil & Brown § 8:1207; *Pember v. Superior Court* (1967) 66 Cal.2d 601, 604.) The court's choice of sanctions is reviewable only for abuse of discretion. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213; Code Civ. Proc., §§ 2023.010; 2023.030 [describing "misuses of the discovery process", which include "[f]ailing to respond or to submit to an authorized method of discovery" and "[d]isobeying a court order to provide discovery."], section 2023.010, subdivisions (d), (g).) The court's decision on a request for sanctions should reflect the purpose of discovery sanctions which is to enable the party seeking the discovery to obtain the information sought, not to punish a disobedient party. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.)

D. Monetary Sanctions

Plaintiff seeks $3,000 in monetary sanctions against defendant Yang Min Yang and his counsel for attorney's fees incurred with this motion. (March 13, 2026 Lai Decl., ¶ 14(d) [seeking compensation for six hours of attorney time at $500/hour].) This request is **GRANTED in part**. Defendant's counsel asserts that he did not advise his client to violate his discovery obligations and the court accepts that representation.

The court credits plaintiff for four hours of attorney time at $500/hour (4 x $500 = $2,000). The court is reducing the requested time because the opposition was only filed on August 20, 2026, did not require a response, and the four motions are substantially similar. Accordingly, plaintiff's motion for monetary sanctions against defendant Yang Min Yang is **GRANTED** in the amount of $2,000, which shall be paid within thirty (30) days of notice of entry of this Order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 6

24-CIV-04529 CHUNYU TAN VS. YANG MIN YANG, ET AL

CHUNYU TAN	X. YOUNG LAI
YANG MIN YANG	JONATHAN E. MADISON

MOTION FOR TERMINATING, ISSUE, EVIDENCE, AND MONETARY SANCTIONS RE: PLAINTIFF'S FORM INTERROGATORIES (SET ONE, NO. 2.2, 2.6-2.7, 15.1, 50.1, 50.3, AND 50.6)

TENTATIVE RULING:

Plaintiff Chunyu Tan's motion for terminating, issue, evidence, and monetary sanctions of $4,000 regarding Defendant Yang Min Yang's responses to Plaintiff's Form Interrogatories, Set One, Nos. 2.2, 2.6, 2.7, 15.1, 50.1, 50.3, and 50.6., filed March 13, 2026, is **GRANTED in part**.

E. Service of the Motion and Defendant's Response

Because the court had questions about whether this Motion was properly served, counsel were ordered to appear on August 5, 2026 and the court permitted defendant's counsel to file a responsive brief. He submitted an omnibus opposition to the four motions to compel as well as a declaration on August 20, 2026. No discovery responses were submitted along with defendant's opposition. Instead, defendant's counsel has asked for additional time to respond. He argues that his client's injuries in December 2024 and March 2025 should excuse the failure to respond. Defendant's counsel offers no explanation for any further delay. (See Declaration of Jonathan E. Madison in Opp. to Pltfs.' Requests for Monetary Sanctions Against Counsel of Record, ¶¶ 4-13.) However, defense counsel argues against the court imposing sanctions against counsel of record on the ground that he "did not advise Defendant Yang Min Yang to engage in any of the conduct for which Plaintiff seeks sanctions." (*Id.*, ¶ 20.)

A. Background

Plaintiff Chunyu Tan's August 26, 2024 First Amended Complaint (FAC) alleges that in 2022, plaintiff loaned $500,000 to defendants Yang Min Yang and Che Ping Tam pursuant to a Promissory Note calling for annual interest of 12%. The loan allegedly was secured by a Deed of Trust on real property located in San Francisco that was owned by defendants Yang and Tam. The FAC alleges that at the time of the 2002 loan, defendants concealed their precarious financial status and the fact that their San Francisco property, which secured the loan, had a superior lien. The first lienholder allegedly later foreclosed on the San Francisco property and plaintiff lost her security interest in the $500,000 loan. Plaintiff alleges that defendants still owe $505,000 on the Note, plus interest and other fees and charges.

As of December 2025, defendants Che Ping Tam and Y & W Investment LLC had defaulted, leaving Yang Min Yang as the only remaining active defendant.

The FAC asserts causes of action for (1) breach of contract, that is, breach of the Promissory Note; (2) fraud as to the alleged concealment of the first lien on the San Francisco property; (3) fraudulent transfer; and (4) conspiracy.

Plaintiff filed the instant motion requesting every category of sanction authorized by the Civil Discovery Act but contempt. (See Code Civ. Proc., §§ 2023.030, 2031.300, subd. (c)) based on Yang's responses to plaintiff's Form Interrogatories, Set One, Nos. 2.2, 2.6-2.7, 15.1, 50.1, 50.3, and 50.6.

B. Law Governing Discovery Misuse

"It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434.) The goal of a self-executing discovery system is stymied when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291.) Parties are reminded that "a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Id*., at p. 1294.)

Code of Civil Procedure, section 2023.030 provides that, to the extent authorized by any particular discovery method, the court may impose monetary, issue, evidence, or terminating sanctions. Code of Civil Procedure, sections 2030.300, subdivision (e) and 2031.310, subdivision (i) state that if a party fails to obey an order compelling further responses, the court may make those orders that are just, including the imposition of an issue, evidence, or terminating sanction.

Whether to grant a sanction is entirely within the discretion of the court. (Weil & Brown § 8:1207; *Pember v. Superior Court* (1967) 66 Cal.2d 601, 604.) Trial courts have broad discretion regarding whether to impose sanctions and which sanctions to impose. (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 789.) The court's choice of sanctions is reviewable only for abuse of discretion. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213; Code Civ. Proc., §§ 2023.010; 2023.030 [describing "misuses of the discovery process", which include "[f]ailing to respond or to submit to an authorized method of discovery" and "[d]isobeying a court order to provide discovery."], section 2023.010, subdivisions (d), (g).)

The court's decision on a request for sanctions should reflect the purpose of discovery sanctions which is to enable the party seeking the discovery to obtain the information sought, not to punish a disobedient party. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.)

Lesser sanctions should usually be granted before imposing terminating sanctions. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771.) Terminating sanctions for discovery abuses are to be used sparingly because of the drastic effect of their application. (*Dept. of Forestry and Fire*

Protection v. Howell (2017) 18 Cal.App.5th 154, 191.) Terminating sanctions are authorized where the evidence shows that less severe sanctions will not succeed in compelling discovery responses. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

Typically, a party's disobedience of an order compelling discovery must come before an order imposing terminating sanctions. (*Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1021.) A court does not abuse its discretion in ordering termination sanctions against a party that has "persisted in its pattern of failure or refusal to give meaningful responses to discovery." (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc*. (2008) 163 Cal.App.4th 1093, 1106.)

C. Discussion

In addition to the delay in prosecution she has suffered, plaintiff contends she is prejudiced because the responses to Form Interrogatories Nos. 2.2, 2.6-2.7, 15.1, 50.1, 50.3, and 50.6 are incomplete. Plaintiff states that "the information is presumptively within defendant's knowledge, but either he intentionally withheld the information or failed to make a reasonable effort to obtain it." (Opp., at p. 3.)

A review of the Separate Statement in support of the Motion demonstrates that the answers are indeed incomplete. For example, in response to FROG No. 15.1(a) which demands that Yang "state all facts upon which you base the denial or special or affirmative defense," defendant responded "The facts set forth in Responding Party's Answer to the Complaint in this matter are clear on the basis for denial and/or Special Affirmative Defenses." There are no facts alleged in Yang's answer, filed on December 4, 2024, nor has he pled any facts to support his affirmative defendants. In his supplemental response defendant stated: "(a) Defendant denies liability as alleged. Defendant did not engage in wrongdoing of any kind. Defendant's understanding is that Plaintiff's claims arise from contractual disputes involving other parties, and Defendant disputes the allegations. Discovery is ongoing." That response supplies no facts, nor supports Yang's affirmative defenses.

In response to FROG No. 15.1(b), defendant offered only the name of Che Ping Tam. In response to FROG No. 15.1(c) Yang has not identified any documents supporting his denials or affirmative defenses other than the "loan documents, escrow documents, and [unspecified] related transactional documents." In response to FROG No. 50.3, which required him to "identify each agreement excused and state why performance was excused," Yang responded "Defendant contends that performance was excused, in part, due to Plaintiff's own conduct and actions by other parties to the transaction. Discovery is ongoing." Defendant failed to explain his answer. Further, when asked (in FROG No. 50.6) if "any agreement alleged in the pleadings ambiguous? If so, identify each ambiguous agreement and state why it is ambiguous," defendant did not supply any substantive explanation but stated in his supplemental response that "The alleged agreements are ambiguous. Discovery is ongoing."

Defendant's responses are wholly inadequate, long overdue, and not code-compliant. The court therefore **ORDERS** the following evidentiary sanctions:

- Defendant Yang Min Yang is precluded from offering any facts in further support of his response to FROGs 15.1(a) or (b), or documents in response to FROG 15.1(c);
- Defendant Yang Min Yang is precluded from offering any facts in further support of his response to FROG 50.3;
- Defendant Yang Min Yang is precluded from offering any facts in further support of his response to FROG 50.6;

As to plaintiff's request for monetary sanctions against defendant Yang and his counsel, the court agrees with plaintiff that failure to respond or engage in an "authorized method of discovery" and "disobeying a court order to provide discovery," or failing to do either in timely fashion, are misuses of the discovery process. (Code Civ. Proc., § 2023.010, subds. (d), (g).) Monetary sanctions are intended to compensate a party for "the reasonable expenses, including attorney's fees, incurred by anyone as a result of" a misuse of discovery. (*Id.*, § 2023.030, subd. (a).)

The court grants in part the request for monetary sanctions. Defendant's counsel asserts that he did not advise his client to violate his discovery obligations and the court accepts that representation.

The court credits plaintiff for five hours of attorney time at $500/hour (5 x $500 = $2,500). (See Lai Decl., ¶ 14(a).) The court is reducing the requested time because the opposition was only filed on August 20, 2026, did not require a response, and the four motions are substantially similar. Accordingly, plaintiff's motion for monetary sanctions against defendant Yang Min Yang is **GRANTED** in the amount of $2,500, which shall be paid within thirty (30) days of notice of entry of this Order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 7

24-CIV-04529 CHUNYU TAN VS. YANG MIN YANG, ET AL

CHUNYU TAN	X. YOUNG LAI
YANG MIN YANG	JONATHAN E. MADISON

MOTION FOR TERMINATING, ISSUE, EVIDENCE, AND MONETARY SANCTIONS RE: PLAINTIFF'S SPECIAL INTERROGATORIES (SET ONE, NO. 1-12)

TENTATIVE RULING:

For the reasons stated below, plaintiff Chunyu Tan's "Motion for Terminating, Issue, Evidence, and Monetary Sanctions Re: Plaintiff's Special Interrogatories (Set One, No. 1-12)," filed March 13, 2026, is **GRANTED-in-part**. (Code Civ. Proc. § 2023.010 et. seq. [discovery misuse].)

A. Service of the Motion and Defendant's Response

Because the court had questions about whether this Motion was properly served, counsel were ordered to appear on August 5, 2026 and the court permitted defendant's counsel to file a responsive brief. He submitted an omnibus opposition to the four motions to compel as well as a declaration on August 20, 2026. No discovery responses were submitted along with defendant's opposition. Instead, defendant's counsel has asked for additional time to respond. He argues that his client's injuries in December 2024 and March 2025 should excuse the failure to respond. Defendant's counsel offers no explanation for any further delay. (See Declaration of Jonathan E. Madison in Opp. to Pltfs.' Requests for Monetary Sanctions Against Counsel of Record, ¶¶ 4-13.) However, defense counsel argues against the court imposing sanctions against counsel of record on the ground that he "did not advise Defendant Yang Min Yang to engage in any of the conduct for which Plaintiff seeks sanctions." (*Id*., ¶ 20.)

B. Background

Plaintiff Chunyu Tan's August 26, 2024 First Amended Complaint (FAC) alleges that in 2022, plaintiff loaned $500,000 to defendants Yang Min Yang and Che Ping Tam pursuant to a Promissory Note calling for annual interest of 12%. The loan allegedly was secured by a Deed of Trust on real property located in San Francisco that was owned by defendants Yang and Tam. The FAC alleges that at the time of the 2002 loan, defendants concealed their precarious financial status and the fact that their San Francisco property, which secured the loan, had a superior lien. The first lienholder allegedly later foreclosed on the San Francisco property and plaintiff lost her security interest in the $500,000 loan. Plaintiff alleges that defendants still owe $505,000 on the Note, plus interest and other fees and charges.

As of December 2025, defendants Che Ping Tam and Y & W Investment LLC had defaulted, leaving Yang Min Yang as the only remaining active defendant.

The FAC asserts causes of action for (1) breach of contract, that is, breach of the Promissory Note; (2) fraud as to the alleged concealment of the first lien on the San Francisco property; (3) fraudulent transfer; and (4) conspiracy.

With this motion, plaintiff seeks terminating sanctions against defendant Yang Min Yang, or alternatively, issue, or evidentiary sanctions, plus monetary sanctions, for alleged discovery abuse — specifically, defendant Yang's failure to provide basic responses to plaintiff's Special Interrogatories (Set One), Nos. 1-12.

On August 7, 2025, the court ordered defendant Yang to serve code-compliant responses to the Special Interrogatories (Set One) (as well as responses to other discovery served by plaintiff) within 10 days. (Aug. 7, 2025 Order.) Defendant Yang did not do so. Instead, Yang forced plaintiff to initiate and attend a series of informal discovery conferences (IDCs) for about three more months. Defendant Yang promised to serve proper responses to the Special Interrogatories, but kept delaying until November 18, 2025, when Yang finally served "supplemental" responses to the Special Interrogatories (Set One). However, Yang's "supplemental" responses provided virtually no information at all. (See generally, March 13, 2026 Lai Decl., and March 13, 2026 "Separate Statement re Special Interrogatories.")

Thus, despite the court's August 7, 2025 Order instructing defendant Yang to serve code-complaint responses to the Special Interrogatories (Set One) within 10 days, Yang did not serve further responses until November 18, 2025, and even then, the responses were essentially meaningless non-responses.

Now, nearly a year later, defendant Yang has still not provided any meaningful responses to plaintiff's Special Interrogatories (Set One).

C. Law Governing Sanctions for Discovery Misuse

"It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434.) The goal of a self-executing discovery system is stymied when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291.) Parties are reminded that "a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Id.*, at p. 1294.)

Code of Civil Procedure, section 2023.030 provides that, to the extent authorized by any particular discovery method, the court may impose monetary, issue, evidence or terminating sanctions. Code of Civil Procedure, sections 2030.300, subdivision (e) and 2031.310, subdivision (i) state that if a party fails to obey and order compelling further responses, the court may make those orders that are just, including the imposition of an issue, evidence or terminating sanction.

Whether to grant a sanction is entirely within the discretion of the court. (Weil & Brown § 8:1207; *Pember v. Superior Court* (1967) 66 Cal.2d 601, 604.) Trial courts have broad discretion regarding whether to impose sanctions and which sanctions to impose. (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 789.) The court's choice of sanctions is reviewable only for abuse of discretion. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213; Code Civ. Proc., §§ 2023.010; 2023.030 [describing "misuses of the discovery process", which include "[f]ailing to respond or to submit to an authorized method of discovery" and "[d]isobeying a court order to provide discovery."], section 2023.010, subdivisions (d), (g).)

The court's decision on a request for sanctions should reflect the purpose of discovery sanctions which is to enable the party seeking the discovery to obtain the information sought, not to punish a disobedient party. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.)

Lesser sanctions should usually be granted before imposing terminating sanctions. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771.) Terminating sanctions for discovery abuses are to be used sparingly because of the drastic effect of their application. (*Dept. of Forestry and Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 191.) Terminating sanctions are authorized where the evidence shows that less severe sanctions will not succeed in compelling discovery responses. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

Typically, a party's disobedience of an order compelling discovery must come before an order imposing terminating sanctions. (*Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1021.) A court does not abuse its discretion in ordering termination sanctions against a party that has "persisted in its pattern of failure or refusal to give meaningful responses to discovery." (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc*. (2008) 163 Cal.App.4th 1093, 1106.)

D. Plaintiff's Special Interrogatories (Set One), Nos. 1-12

Plaintiff's Special Interrogatories and defendant's responses are summarized as follows:

1. State the amount of the interest payments of the LOAN that DEFENDANTS have made …

(Defendant Yang's summarized supplemental response: defendant is presently unable to state the amount of interest payments allegedly made in connection with the loan referenced …)

2. IDENTIFY any DOCUMENTS showing the interest payments of the LOAN …

(Defendant Yang's summarized supplemental response: notwithstanding a ledger, defendant is not presently aware of any documents in his possession, custody, or control showing interest payments made in connection with the alleged loan.)

3. State the amount of the principal payments of the LOAN that DEFENDANTS have made …

(Defendant Yang's summarized supplemental response: defendant is presently unable to state the amount of interest payments allegedly made in connection with the referenced loan.)

4. IDENTIFY any DOCUMENTS showing the principal payments of the LOAN.

(Defendant Yang's summarized supplemental response: notwithstanding a ledger, defendant is not presently aware of any documents in his possession, custody, or control showing interest payments made in connection with the alleged loan.)

5. State the amount of the compensation that STEVEN GUANG LEUNG received from DEFENDANTS in connection with the LOAN.

6. IDENTIFY any DOCUMENTS showing the compensation that STEVEN GUANG LEUNG received from DEFENDANTS in connection with the LOAN.

7. State whether any written agreement(s) entered into between STEVEN GUANG LEUNG and DEFENDANTS in connection with the LOAN.

(Defendant Yang's summarized supplemental responses to SROGS 5-7: defendant "is currently unaware of any compensation paid to Steven Guang Leung by Defendant in connection with the loan," and is not aware of documents including written agreements relating to any payments.)

8. State when DEFENDANTS received the LOAN funds of $500,000.

(Defendant Yang's summarized supplemental response: defendant lacks sufficient information at this time to state the specific date or method by which the alleged loan funds were received.)

9. State whether DEFENDANTS received the LOAN funds in the form of cash.

(Defendant Yang's summarized supplemental response: defendant does not recall receiving the alleged loan funds in the form of cash.)

10. IDENTIFY the PERSON who delivered the LOAN funds …

(Defendant Yang's summarized supplemental response: defendant is presently unable to identify the person who delivered the loan funds.)

11. Describe how DEFENDANTS made the interest-only payments of the LOAN to PLAINTIFF from June 1, 2022 through April 1, 2023 (e.g., through cash, checks, or wire-transfer.)

(Defendant Yang's summarized supplemental response: defendant is presently unable to describe the method by which interest-only payments, if any, were made from June 1, 2022 through April 1, 2023.)

12. If the interest-only payments of the LOAN to PLAINTIFF from June 1, 2022, through April 1, 2023, were disbursed through an intermediate person, IDENTIFY that person.

(Defendant Yang's summarized supplemental response: defendant is presently unaware of any person who served as an intermediary for the disbursement of interest-only payments to plaintiff.)

As can be seen from defendant Yang's "supplemental" responses, he has made no attempt to provide meaningful responses to the Special Interrogatories (Set One), despite being given substantial time to do so, and despite having been ordered to do so. (Aug. 7, 2025 Order.)

E. Plaintiff's Breach of Contract Allegations

The FAC's first cause of action for breach of contract (breach of the Promissory Note) alleges, in part:

> 27. Pursuant to the terms of the Promissory Note, the Borrowers were to make 11 monthly interest only-payment[s] of $5,000 starting from June 1, 2022, and the principal and last interest payment in a total of $505,000 on or before May 1, 2023.
>
> 28. From June 1, 2022, through April 1, 2023, 11 interest-only payments of $5,000 were made. However, Defendants failed to make the Balloon Balance of $505,000 on May 1, 2023, and continue to fail to do so thereafter. …
>
> 30. As a result of the default, Defendants YANG and TAM have breached the Promissory Note. As a direct and proximate consequence of Defendants' breach, Plaintiff has been damaged in the amount of the Balloon Balance, the Late Charges, the interest at the Note Rate and Default Rate that continues to accrue, and the Return Check Charge, plus any additional fees and expenses permitted under the Promissory Note, all in an amount according to proof at the time of trial.
>
> 31. As of now, the amounts due, owing, and outstanding under the Promissory Note are the principal of $505,000, the Return Check Charge of $50, the Late Charge of $85,000, and interest of $107,312.50, which are continuously accruing.

F. Issue and/or Evidentiary Sanctions

In its discretion, the court declines to issue termination sanctions at this time. However, the court hereby issues the following issue/evidentiary sanctions against defendant Yang Min Yang.

Plaintiff contends that she loaned $500,000 to defendants in 2022, and thereafter, defendants made 11 interest-only payments to plaintiff in the amount of $5,000 each. Plaintiff alleges that defendants failed to make the final "balloon" payment of $505,000 ($500,000 in principal plus the last $5,000 interest payment). Thus, plaintiff contends that defendants still owe $505,000 on the Note, plus additional amounts for a returned check charge, late charge, and interest, which are still accruing.

Because defendant Yang has refused to provide any information about any principal and/or interest payments on the loan, defendant Yang Min Yang is and shall be shall be barred and precluded from offering, at trial, any evidence to refute or dispute plaintiff's contentions that:

- In 2022, plaintiff loaned $500,000 to defendants, per the referenced Promissory Note, which has not been repaid;
- After the loan was made, defendants made a total of 11 interest-only payments of $5,000, but defendants have not paid, and still owe, the entire principal amount of the loan ($500,000), plus the final interest payment of $5,000 (for a total of $505,000), plus any additional amounts that plaintiff may prove at trial (for example, returned check charge(s), late charge(s), and interest.)

The motion for monetary sanctions is also **GRANTED in part**, against defendant Yang Min Yang, in the amount of $3,000. Defendant's counsel asserts that he did not advise his client to violate his discovery obligations and the court accepts that representation.

Plaintiff seeks $4,000 in monetary sanctions against defendant Yang Min Yang and his counsel for attorney's fees incurred with this motion. (March 13, 2026 Lai Decl., ¶ 14(b) [seeking compensation for eight hours of attorney time at $500/hour].) The court credits plaintiff for six hours of attorney time at $500/hour (6 x $500 = $3,000). The court is reducing the requested time because the opposition was only filed on August 20, 2026, did not require a response, and the four motions are substantially similar. Accordingly, plaintiff's motion for monetary sanctions against defendant Yang Min Yang is **GRANTED** in the amount of $3,000, which shall be paid within thirty (30) days of notice of entry of this Order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order

repeating verbatim the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 8

24-CIV-04529 CHUNYU TAN VS. YANG MIN YANG, ET AL

CHUNYU TAN	X. YOUNG LAI
YANG MIN YANG	JONATHAN E. MADISON

MOTION FOR TERMINATING, ISSUE, EVIDENCE, AND MONETARY SANCTIONS RE: PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS (SET ONE, NO. 1-9)

TENTATIVE RULING:

Plaintiff Chunyu Tan's Motion for Terminating, Issue, Evidence, and Monetary Sanctions Regarding Plaintiff's Requests for Production of Documents (Set One, Nos. 1–9) is **GRANTED in part.**

A. Service of the Motion and Defendant's Response

Because the court had questions about whether this Motion was properly served, counsel were ordered to appear on August 5, 2026 and the court permitted defendant's counsel to file a responsive brief. He submitted an omnibus opposition to the four motions to compel as well as a declaration on August 20, 2026. No discovery responses were submitted along with defendant's opposition. Instead, defendant's counsel has asked for additional time to respond. He argues that his client's injuries in December 2024 and March 2025 should excuse the failure to respond. Defendant's counsel offers no explanation for any further delay. (See Declaration of Jonathan E. Madison in Opp. to Pltfs.' Requests for Monetary Sanctions Against Counsel of Record, ¶¶ 4-13.) However, defense counsel argues against the court imposing sanctions against counsel of record on the ground that he "did not advise Defendant Yang Min Yang to engage in any of the conduct for which Plaintiff seeks sanctions." (*Id*., ¶ 20.)

B. Background

Plaintiff Chunyu Tan's August 26, 2024 First Amended Complaint (FAC) alleges that in 2022, plaintiff loaned $500,000 to defendants Yang Min Yang and Che Ping Tam pursuant to a Promissory Note calling for annual interest of 12%. The loan allegedly was secured by a Deed of Trust on real property located in San Francisco that was owned by defendants Yang and Tam. The FAC alleges that at the time of the 2002 loan, defendants concealed their precarious financial status and the fact that their San Francisco property, which secured the loan, had a superior lien. The first lienholder allegedly later foreclosed on the San Francisco property and plaintiff lost her security interest in the $500,000 loan. Plaintiff alleges that defendants still owe $505,000 on the Note, plus interest and other fees and charges.

As of December 2025, defendants Che Ping Tam and Y & W Investment LLC had defaulted, leaving Yang Min Yang as the only remaining active defendant.

The FAC asserts causes of action for (1) breach of contract, that is, breach of the Promissory Note; (2) fraud as to the alleged concealment of the first lien on the San Francisco property; (3) fraudulent transfer; and (4) conspiracy.

On August 7, 2025, having failed to provide any responses whatsoever, Yang was ordered to serve code-compliant responses to Tam's first set of requests for production by August 19, 2025, and to pay sanctions in the amount of $425 by September 9, 2025. (Aug. 7, 2025 Order; see Aug. 7, 2025 Affidavit of Service.) At an unspecified time, Yang served responses to the requests, in which he stated his inability to comply with any because he variously is not aware of any responsive documents, has not identified any, or does not possess any. (See March 13, 2026 Separate Statement, Request for Production [Sep. Stmt], *passim*.) On November 18, 2025, Yang served further responses the day before an informal discovery conference which had been scheduled to address defects in the original responses. (March 13, 2025 Declaration of X. Young Lai [Requests for Production]), ¶¶ 3–4, 6–7, 9.)

Neither the original responses nor the further response are code-compliant: each fails to "specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party" and "set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item" as required by statue. (Code Civ. Proc., § 2031.230; see Sep. Stmt, *passim*.) Nor at any time did Yang pay the monetary sanction. (Lai Decl., ¶ 3.) Therefore, Yang in violation of the August 7, 2025 order.

On this basis, Tan seeks every category of sanction authorized by the Civil Discovery Act but contempt. (See Code Civ. Proc., §§ 2023.030, 2031.300, subd. (c).)

C. Law Governing Sanctions for Discovery Misuse

"It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434.) The goal of a self-executing discovery system is stymied when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291.) Parties are reminded that "a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Id*., at p. 1294.)

Code of Civil Procedure, section 2023.030 provides that, to the extent authorized by any particular discovery method, the court may impose monetary, issue, evidence, or terminating sanctions. Code of Civil Procedure, sections 2030.300, subdivision (e) and 2031.310, subdivision (i) state that if a party fails to obey an order compelling further responses, the court may make those orders that are just, including the imposition of an issue, evidence, or terminating sanction.

Whether to grant a sanction is entirely within the discretion of the court. (Weil & Brown § 8:1207; *Pember v. Superior Court* (1967) 66 Cal.2d 601, 604.) Trial courts have broad discretion regarding whether to impose sanctions and which sanctions to impose. (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 789.) The court's choice of sanctions is reviewable only for abuse of discretion. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213; Code Civ. Proc., §§ 2023.010; 2023.030 [describing "misuses of the discovery process", which include "[f]ailing to respond or to submit to an authorized method of discovery" and "[d]isobeying a court order to provide discovery."], section 2023.010, subdivisions (d), (g).)

The court's decision on a request for sanctions should reflect the purpose of discovery sanctions which is to enable the party seeking the discovery to obtain the information sought, not to punish a disobedient party. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.)

Lesser sanctions should usually be granted before imposing terminating sanctions. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771.) Terminating sanctions for discovery abuses are to be used sparingly because of the drastic effect of their application. (*Dept. of Forestry and Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 191.) Terminating sanctions are authorized where the evidence shows that less severe sanctions will not succeed in compelling discovery responses. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

Typically, a party's disobedience of an order compelling discovery must come before an order imposing terminating sanctions. (*Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1021.) A court does not abuse its discretion in ordering termination sanctions against a party that has "persisted in its pattern of failure or refusal to give meaningful responses to discovery." (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc*. (2008) 163 Cal.App.4th 1093, 1106.)

D. Discussion

In addition to the delay in prosecution she has suffered, Tan contends she is prejudiced by the fact that no documents have been produced and accuses Yang of "withholding documents to avoid establishing his liability." (March 13, 2026 Motion [Requests for Production], at pp. 7, l. 19.) That is, Tan argues that the fact that Yang says he has no documents is the problem.

Terminating, issue, and evidentiary sanctions are only appropriate if discovery misuse causes a party to be unable to prove or defend against claims, and the defects here have not done so. Yang's failure to state "whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party" or to "set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item," has prejudiced plaintiff's ability to prosecute this case. (Code Civ. Proc., § 2031.230.) Accordingly, the court **ORDERS** defendant Yang to provide code-compliant responses, without objection, and to produce all responsive non-privileged documents in his possession, custody, and control within thirty (30) days of notice of entry of the formal order. If any documents are withheld on the ground of attorney-client or other privilege, Yang must produce a privilege log within forty-five (45) days of notice of entry of the formal order. If Yang fails to comply with this order, the court will consider ordering further sanctions.

The court further grants in part the request for monetary sanctions. The court credits plaintiff for five hours of attorney time at $500/hour (5 x $500 = $2,500). (See Lai Decl., ¶ 14(c).) The court is reducing the requested time because the opposition was only filed on August 20, 2026, did not require a response, and the four motions are substantially similar. Defendant's counsel asserts that he did not advise his client to violate his discovery obligations and the court accepts that representation.

Accordingly, plaintiff's motion for monetary sanctions against defendant Yang Min Yang is **GRANTED** in the amount of $2,500, which shall be paid within thirty (30) days of notice of entry of this Order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 9

25-CIV-00601 KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL

KEVIN RAMOS	PRO PER
SAN MATEO COUNTY TRANSIT DISTRICT	DANIELLE K. LEWIS

SECOND MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANT SAN MATEO COUNTY TRANSIT DISTRICT REGARDING THE PLAINTIFF'S REQUEST FOR PRODUCTION #1

TENTATIVE RULING:

For the reasons stated below, plaintiff Kevin Ramos' "Second Motion to Compel Further Responses from Defendant San Mateo County Transit District Regarding the Plaintiff's Request for Production #1," filed on August 11, 2026, is **DENIED**.

Defendant San Mateo County Transit District's August 20, 2026 Evidentiary Objections are **OVERRULED**. These objections go to weight, not admissibility. In any event, the objections are moot, given that the court is denying the motion.

A. Background

In February 2025, plaintiff served defendant with Requests for Production (RFPs) of Documents (Set One). (Aug. 20, 2026 Lewis Decl., ¶ 2.) On March 26, 2025, defendant served its initial responses to the RFPs, Set One. (*Ibid.*) Discovery was stayed from April through October 2025. (*Id.*, ¶ 3.) On November 21, 2025, defendant served verified supplemental responses to the RFPs, Set One. (*Id.*, ¶ 4.) On December 17, 2025, the court issued an order granting (in part) plaintiff's motion to compel defendant to provide further responses to the RFPs, Set One. (*Id.*, ¶ 5.) Specifically, the court granted plaintiff's motion to compel further responses to RFPs Nos. 1.1, 1.2, 1.4, 1.5, 1.6, 1.7, 1.8, 1.9, and 2.2, but denied the motion as to the remaining RFPs. (*Ibid.*) On February 11, 2026, defendant served (unverified) second supplemental responses to the RFPs, Set One, and on February 25, 2026, defendant served verifications for the second supplemental responses to the RFPs, Set One. (*Id.*, ¶ 6.)

On March 27, 2026, plaintiff filed a "second motion to compel further responses" to the RFPs, Set One, but apparently did not serve the motion. Defendant has provided evidence that it was not served with the March 27, 2026 motion (Lewis Decl., ¶¶ 13-14), and plaintiff did not file a proof of service or certificate of service, showing that the motion was served. (*Ibid.*) On August 11, 2026, plaintiff filed the present *amended* "second motion to compel further responses" to the RFPs, Set One, again without filing a proof of service. (*Id.*, ¶ 15.)

With the present motion, plaintiff again seeks to compel defendant to provide further responses to the plaintiff's RFPs, Set One, Nos. 1.1, 1.2, 1.4, 1.5, 1.6, 1.7, 1.8, 1.9, and 2.2. Defendant opposes the motion on several procedural and substantive grounds.

B. Procedural Issues

1. Page limit violation

Plaintiff filed an 18-page Memorandum of Points & Authorities (MPA) in support of the motion, which exceeds the 15-page limit. (Cal. Rules of Court, rule 3.1113(d).) Although plaintiff is unrepresented by counsel, he is obligated to comply with the rules of court. Going forward, if rule violations are repeated, the court may strike any non-conforming brief(s).

2. Non-compliance with Code of Civil Procedure, section 2031.310, subdivision (c) — the 45-day rule

Plaintiff has not complied with the 45-day rule under Code of Civil Procedure, section 2031.310, subdivision (c). On this ground alone, the motion is denied. Section 2031.310, subdivision (c), governs motions to compel further responses to requests for production of documents, and states:

> Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.

(Code Civ. Proc., § 2031.310, subd. (c).)

The 45-day deadline is mandatory and jurisdictional; late-filed or late-served motions render the court without authority to rule on motion other than to deny them. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409-1410 (*Sexton*).) A moving party cannot cure notice defects by filing amended papers outside the 45-day period. (*Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 139.)

Here, defendant served supplemental responses to the RFPs, Set One, in November 2025, and then served its second supplemental responses in February 2026. (Lewis Decl. ¶¶ 4, 6-7, exhs. A-C.) By rule, the 45-day window to file and serve a motion to compel further responses expired no later than April 11, 2026. The motion that plaintiff filed in March 2026 was not served. (*Id*., ¶¶ 13-15, exh. F.) Plaintiff filed the present amended motion on August 11, 2026, many months after the 45-day deadline expired. Accordingly, plaintiff waived his right to compel further responses. (*Sexton*, *supra*, 58 Cal.App.4th at pp. 1409-1410.)

3. Non-compliance with the Separate Statement Requirement

California Rules of Court, rule 3.1345(c) requires that the Separate Statement accompanying the motion to compel further responses include "the text of each response, answer, or objection, and any further responses or answers." (Cal. Rules of Court, rule 1345(c); *Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 892-893.) Defendant served supplemental responses to the RFPs on November 21, 2025, and second supplemental responses on February 11, 2026 (with verifications served on February 25, 2026). (Lewis Decl. ¶¶ 4, 6-7, exhs. A-C.) For RFPs Nos. 1.1, 1.2, 1.4, 1.5, 1.6, plaintiff's Separate Statement reproduces only defendant's original responses. Those original responses are no longer the operative responses. And RFP No. 1.9 does not appear anywhere in the Separate Statement. Thus, plaintiff's Separate Statement does not provide the relevant responses.

For at least the foregoing reasons, the motion is denied.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 10

25-CIV-01197 ZCA HOMES LLC VS. FELECIA A. JACKSON

ZCA HOMES LLC	MARIE G. QUASHNOCK
FELECIA A. JACKSON	THOMAS S. WROBEL

DEFENDANT FELICIA A. JACKSON'S DEMURRER TO PLAINTIFF ZCA HOMES LLC'S FIRST AMENDED COMPLAINT FOR SPECIFIC PERFORMANCE OF CONTRACT FOR SALE OF REAL PROPERTY; ALTERNATIVELY FOR DAMAGES FOR BREACH OF CONTRACT

TENTATIVE RULING:

As an initial matter, Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Defendant's Demurrer is **SUSTAINED**. Plaintiff's Request for Judicial Notice (RJN) is **GRANTED**.

A. Background

The First Amended Complaint (FAC) alleges that plaintiff's assignor offered to purchase the realty located at 219 Hillcrest Drive, Daly City, CA 94014 (the Property) from defendant for $700,000 on January 24, 2025, and defendant accepted the offer. (FAC, ¶¶ 1 & 6, exh. 1.) Plaintiff then deposited $5,010.00 of earnest money into escrow, but defendant breached the parties' contract by failing to close escrow. (*Id.*, ¶¶ 7-8.)

Defendant generally demurs to the FAC as to both (alternative) causes of action, asking that leave to amend be denied. (Code Civ. Proc., § 430.10, subd. (e).)

B. Legal Standards for Demurrer

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation]." (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc*. (2024) 16 Cal.5th 1003, 1013 (*John's Grill*), quoting *Alcorn v. Anbro Engineering, Inc*. (1970) 2 Cal.3d 493, 496 (*Alcorn*).)

A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*John's Grill*, *supra*, 16 Cal.5th at p. 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967 (*Aubry*).)

"[I]t is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (*Aubry*, *supra*, 2 Cal.4th at p. 967.) The party seeking leave to amend has the burden of demonstrating the possibility that amendment can cure the legal defects of the pleading. (*A.J. Fistes Corp. v. GL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 687.)

C. The Demurrer is Sustained

The Property at issue is the realty of an estate. (*See* Plaintiff's RJN, ¶ 4; exh E, at p. 18.) "The rule is well settled that proceedings for the sale of the real property of a decedent are statutory, and that such a sale will be void unless the requirements of the statute are complied with." (*Hellman v. Merz* (1896) 112 Cal. 661, 666 (*Hellman*), citations omitted.) As the governing law requires: "*real property of the estate may be sold only after* notice of sale has been published." (Prob. Code, § 10300, subd. (a), emphasis added.) At the time of the alleged sale, defendant had only limited authority over the estate, and lacked the authority to sell the Property without court supervision. (Plaintiff's RJN, ¶¶ 2-3; exhs. B & C; Prob. Code, § 10501, subd. (b)(1), & *id*., § 10308.)

The governing law further requires that:

> all sales of real property shall be reported to and be confirmed by the court **before title to the property passes to the purchaser**, whether the sale is a private sale or a public auction sale and notwithstanding that the property is directed by the will to be sold or authority is given in the will to sell the property.

(Prob. Code, § 10308, subd. (a), emphasis added.) Then, "If the personal representative fails to file the report and a petition for confirmation of the sale within 30 days after the sale, the purchaser at the sale may file the report and petition for confirmation of the sale." (*Id*., subd. (b).)

Plaintiff argues that it cannot petition for confirmation of the sale until defendant has performed by completing the sale, contradicting the governing statutes by taking the language of subdivision (b) to mean that it cannot petition for the court's confirmation until *after title has passed* to it. However, defendant cannot close escrow and thus transfer title as plaintiff demands before obtaining confirmation from the court.

Plaintiff essentially argues that because defendant failed to fulfill the requirements of the Probate Code, including publishing a notice of sale, the alleged sale occurred outside the governance of the Probate Code. However, again, as a statute which plaintiff partially quotes requires: "*real property of the estate may be sold only after* notice of sale has been published." (Prob. Code, § 10300, subd. (a), emphasis added.) Defendant's failure to follow the law does not render the purported contract to sell real property of the estate enforceable.

Plaintiff's authorities are not on point. Plaintiff cites language from *Mains v. City Title Ins. Co*. (1949) 34 Cal.2d 580, 583-584, referring to the defendant's arguments regarding a sale *under the Probate Code*, and describing language in another case regarding whether a sale was "judicial" as "persuasive argument rather than authority." (*Id*., at p. 584.) Plaintiff also attempts to rely upon *Estate of Klauenberg* 32 Cal.App.3d 1067, which was an appeal "from an order of the probate court confirming the sale of real property by the executor" (*id.*, at p. 1069), in which the court found that the sale contract should be enforced. Plaintiff even quotes the requirement that if the representative of the estate proceeds timely to confirm the sale, then the contract is enforceable, which suggests that if the court has not approved the sale contract, then it is not enforceable. (*Id*., at p. 1070.)

Plaintiff further cites *Wood v. Roach* (1932) 125 Cal.App. 631, which provides that, "Since the above enactments an executor or administrator can negotiate a sale without first procuring an order, but no title passes until confirmation." (*Id.*, at p. 637, citation omitted.) Partially quoting this statement, plaintiff asserts that, "A representative 'can negotiate a sale without first procuring an order,' and what awaits confirmation is the passage of *title*, not the existence of the contract." (Opp., at p. 1:21-23.) Of course, negotiation does not necessarily mean that the contract exists, and even by its name, the petition is one to confirm the sale, without which title does not pass. Plaintiff quotes another case stating that where the executor had the power "to sell, still it was necessary to have the sale reported and confirmed by the court in order to convey the legal title" (*In re Richards' Estate* (1908) 154 Cal. 478, 488) to support its contrary assertions that, "The object of confirmation is title. It has never been the existence of the contract." (Opp., at p. 6:11-12.)

Relying on *Estate of Quackenbush* (1975) 53 Cal.App.3d 751, 757-758 (*Quackenbush*), plaintiff asserts that where the decedent's agreement is outside Probate Code, section 850, the Probate Court cannot order specific performance, so that plaintiff would bring this action before the Civil Division. However, *Quackenbush*, though addressing the exercise of an option, pertinently explains that:

> "[A]fter lessor's death, *his executor lacked the power to bind the estate* by his acceptance of the bid of any party *without confirmation by the probate court*." As in that case, the instant "option" established no agreed upon price; it provided only that in the event of "a contemplated sale" during the term of the lease, the lessor will give lessee written notice of the "substance of the terms on which it is proposed to be made." *After decedent's death the terms on which the property could be sold* and the option exercised *was subject to the control of the probate court*.

(*Quackenbush*, *supra*, 53 Cal.App.3d at p. 755, citation omitted and emphasis added.)

This again shows that the sale contract is unenforceable until confirmed by the court. *Then*, title may transfer pursuant to the sale contract. Plaintiff devotes much energy to the idea that this court has jurisdiction over the instant action because the Civil Division and the Probate Division are one court. (Opp., at pp. 3:18-5:6.) However, this court has distinct divisions among which a case may be more appropriate to one than to another. Since the sale of a decedent's estate is governed by the Probate Code, this action sounds in probate law is most appropriately heard by the Probate Division (which is sometimes also referred to as the "Probate Court").

Plaintiff also asserts that it has never contended that confirmation is unnecessary. (Opp., at p. 9:18.) Instead, it seeks specific performance of the contract so that title can be perfected. However, this argument presupposes that the contract is already enforceable. Apparently, plaintiff is arguing that the court should find the contract enforceable and then enforce it, citing *In re Walker* (1906) 149 Cal. 214 (*Walker*). But in *Walker*, the Court was concerned "solely with the question as to whether there is an existing trust, for the proper administration of which it is necessary that a trustee should be appointed." (*Walker*, *supra*, at p. 218.)

Plaintiff contends that since defendant failed to fulfill the requirements of the law governing the sale of estate realty, the sale agreement should be treated as a privately negotiated contract outside of the probate law, and enforced. This attempts to evade the point that the sales contract is unenforceable unless and until confirmed by the court. Similarly, plaintiff argues that if the contract had been properly entered, then [Probate Code] section 9606 would shield defendant from personal liability and the demurrer would fail, but if not, then defendant is personally liable — but the latter part of this argument overlooks the point that there is as yet no enforceable contract under which defendant could be liable. Also unpersuasively, plaintiff urges that the FAC alleges that defendant had the authority to be bound, and its allegations are to be treated as true, but whether defendant had the legal authority to be bound is a question of law rather than fact, and is *not* treated as true on demurrer. Plaintiff asserts that dismissal of the FAC with prejudice would be especially inappropriate since it would relieve defendant of any obligation to perform under the contract that she signed, and leave plaintiff without a remedy for its breach. However, because the requirements of the Probate Code governing the sale of the realty of the estate had not been fulfilled, there was no valid contract for such a sale that could have been breached.

The second, alternative cause of action for breach of contract could state a claim only if there were a contract, that is, if plaintiff had an enforceable real estate sales contract that could have been breached. Because the sale of realty owned by an estate is governed by the Probate Code, which requires court confirmation of sale to become enforceable, the second cause of action does not state a claim.

Plaintiff further asserts that defendant cannot now demur on grounds that could have been raised in an earlier demurrer. (Code Civ. Proc., § 430.41, subd. (b).) However, this court expressly granted plaintiff leave to amend to contend with the language of Probate Code section 10308, subdivision (b) in the FAC (Order, filed on May 28, 2026), and the demurrer argues that the amendment fails to cure the pleading defects of the complaint.

Defendant also seeks an order removing the *lis pendens* and awarding attorney's fees, which are beyond the scope of the demurrer. The court notes that a motion to expunge the *lis pendens* and for attorney's fees is set for hearing on September 30, 2026.

D. Plaintiff's Request for Judicial Notice in Opposition

Plaintiff's Request for Judicial Notice (RJN) is **GRANTED**. (Evid. Code, § 452, subd. (d); § 453).

Judicial notice of these documents is limited to their existence, content, and authenticity, and does not extend to the truth of the factual matters contained therein. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 11

25-CIV-09349 MATILDE IBARRA, ET AL VS. JOSE MANUEL PINON, ET AL

MATILDE IBARRA	JAMESON ULLMAN
JOSE MANUEL PINON	JOSEPH A. LEPERA

DEFENDANTS JOSE MANUEL PINON AND JEIS PINON'S MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT, IF ENTERED

TENTATIVE RULING:

Defendants Jose Manuel Pinon's and Jeis Pinon's motion for an order setting aside the default judgment entered on February 13, 2026, is **GRANTED**.

Defendants are **ORDERED TO FILE THEIR ANSWER** within ten (10) days of notice of entry of the formal order.

A. Background

This is a landlord-tenant action arising from plaintiffs' tenancy at property owned by defendants. Plaintiffs filed their complaint on November 21, 2025.

Defendants request the court vacate the entry of default because the delay was caused by their efforts to find and retain counsel. While doing so, they sought an extension of time in which to file their answer from plaintiffs' counsel. Because the length of time requested plaintiffs' counsel refused to stipulate and suggested defendants file a motion which plaintiffs would not oppose. Defendants did in fact file a motion for an extension of time but it was ultimately denied for their failure to serve the motion upon plaintiffs. They were unaware of the denial and its basis until after plaintiff moved for entry of default judgment for failing to file an answer.

Default judgment was entered February 13, 2026. Defendants retained counsel on or around March 13, 2026. On the date they were hired defense counsel requested plaintiffs stipulate to setting aside the default but plaintiffs refused. The instant motion to vacate the default was filed shortly thereafter, on March 27, 2026.

Defendants request the court vacate the default judgment pursuant to Code of Civil Procedure, section 473, subdivision (b) on the basis of surprise and excusable neglect. Plaintiffs oppose the motion, contending they will be prejudiced by enduring further tactical delays caused by defendants' disregard for judicial deadlines.

B. Legal Standard

Code of Civil Procedure, section 473, subdivision (b) provides in pertinent part that a court "may, upon any terms as may be just, relieve a party . . . from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).) Under this statute, "a court may relieve a party from a default or default judgment due to 'mistake, inadvertence, surprise, or excusable neglect' if the party files an application for relief within six months from the date of the default." (*Ibid*; *Kramer v. Traditional Escrow, Inc*. (2020) 56 Cal.App.5th 13, 28.)

C. Discussion

Defendants request the Court vacate the default judgment entered on February 13 because default judgment was entered due to their mistake and excusable neglect. To wit, they attempted to file a motion for an extension of time to answer the complaint while unrepresented and in so doing, made a fatal procedural error in failing to serve it upon plaintiffs.

Excusable neglect is "neglect that might have been the act or omission of a reasonably prudent person under the same or similar circumstances." (*Barragan v. County of Los Angeles* (2010) 184 Cal.App.4th 1373, 1382-1383, citations omitted.) "It 'is not shown by the mere failure to discover a fact until it is too late; the party seeking relief must establish that in the exercise of reasonable diligence, he failed to discover it.'" (*Id*., at p. 1383, citations omitted.) Based upon a review of the declarations submitted by both parties and their counsel, it appears that defendants made reasonable efforts to respond. Plaintiffs contend they will be prejudiced if the court grants the motion but do not state how. Furthermore, the complaint was filed late November 2025 and the instant motion was filed only four months later, in the end of March 2026. Accordingly, defendants' error in not timely answering was excusable and the motion is **GRANTED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 12

26-UDL-00556 CARLOTTA CT., LLC VS. BRITTANY L. PICKETT ROSE

CARLOTTA CT., LLC	STEVEN T. NAUMCHIK
BRITTANY L. PICKETT ROSE	

DEMURRER TO COMPLAINT

TENTATIVE RULING:

Defendant Brittany Pickett-Rose's Demurrer to Complaint is **CONTINUED** to 2:00 p.m. on September 16, 2026 in Department 28, Courtroom I, 800 North Humboldt Street, San Mateo, California.

As a preliminary matter, notice of demurer was purportedly served by mail. "Service by mail must be made in strict compliance with the mandates of [Code of Civil Procedure] sections 1013 and 1013a." (*Aquino v. Superior Court* (2021) 73 Cal.App.5th 104, 111.) The proof of service of the demurrer does not set forth the exact title of the documents served and merely states that the papers were "served … by mailing a copy" (see Demurrer, filed Aug. 21, 2026 at p. 11, ll. 11–12) without "also showing that the envelope was sealed and deposited in the mail with the postage thereon fully prepaid." (Code Civ. Proc., § 1013a, subds. (b), (c); see *id.*, § 1013, subd. (a) [paper must be mailed "in a sealed envelope, with postage paid"].)

Notwithstanding the notice defects, plaintiff opposed the demurrer. The court therefore rules as follows.

First, a complaint for unlawful detainer must "[s]tate specifically the method used to serve the defendant with the notice or notices of termination upon which the complaint is based." (Code Civ. Proc., § 1166, subd. (a)(5).) "This requirement may be satisfied … by attaching a proof of service of the notice or notices of termination served on the defendant[,]" which the Complaint does here. (*Ibid.*; see May 11, 2026 Complaint, at p. 2, ll. 15–18, exh. A, at p. 3.) However, the proof of service does not show that the sixty-day notice on which the Complaint is based was served, instead referring to an unknown notice to pay rent or quit. (Complaint, exh. A, at p. 3.) Accordingly, while the Complaint alleges that "plaintiff caused to be served upon the defendant a written notice terminating their tenancy and requiring defendant to deliver up possession of said premises on or before May 1, 2026," the Complaint fails to state specifically how that notice was served and therefore fails to state a cause of action.

Second, "after a tenant has continuously and lawfully occupied a residential real property for 12 months, the owner of the residential real property shall not terminate a tenancy without just cause, which shall be stated in the written notice to terminate tenancy." (Civ. Code, § 1946.2, subd. (a).) The Complaint admits that the tenancy began in 2024 (Complaint, at p. 2, ll. 11–13), and thus a statement of just cause in the notice is required unless the Complaint adequately pleads an exemption from the statutory requirement.

The Complaint attempts to rely on the exemption provided by subdivision (e)(8) of Civil Code, section 1946.2, which provides that residential real property alienable separate from the title to any other dwelling unit is exempt provided that (1) the owner is not a real estate investment trust, corporation, limited liability company with a corporation as a member, or management of a mobilehome park and (2) the tenant has been provided a written notice of the exemption "in the rental agreement" using prescribed statutory language. (Civ. Code, § 1946.2, subd. (e)(8).) While the Complaint alleges that it meets the first requirement, it does not expressly allege that written notice of the exemption was provided in the rental agreement. (See Complaint, p. 2, ll. 20–28.)

The omission of this allegation is understandable, given that the Complaint admits the rental agreement was oral. (Complaint, at p. 2, ll. 11–13.) It nonetheless appears an attempt to cure the absence of written notice was made by altering the rental agreement's terms to include the written notice pursuant to Civil Code, section 827, which allows a landlord to change the terms of a lease for a periodic tenancy "upon giving notice in writing to the tenant, in the manner prescribed by Section 1162 of the Code of Civil Procedure." (Civ. Code, § 827, subd. (a)(1).) The written notice of termination includes a paragraph stating that the terms of the subject tenancy were amended to include the written notice of exemption, effective thirty days after service. (Complaint, exh. A, at p. 1 [also reciting the tenancy is month-to-month].)

Taking all the Complaint's allegations as true, however, it is indisputable that, at the time the notice of termination was served, the property was not exempt from the requirements of Civil Code, section 1946.2, because the lease did not yet include the written notice of the subdivision (e)(8) exemption. Thus, the notice of termination was required to set forth just cause for terminating the tenancy. (See Civ. Code, § 1946.2, subd. (a).) The notice of termination of tenancy on which the Complaint's cause of action is based does not do so. (See Complaint, exh. A, at pp. 1–2.) Thus, in serving the notice without a statement of just cause, Carlotta failed to comply with a provision of Civil Code, section 1946.2. "An owner's failure to comply with any provision of this section shall render the written termination notice void." (Civ. Code, § 1946.2, subd. (g).) The notice of termination is therefore void.

Service of a valid notice to quit is an essential prerequisite and element of an unlawful detainer cause of action. (*Borsuk v. Appellate Division of Superior Court* (2015) 242 Cal.App.4th 607, 611.) The notice must be in strict compliance with statutory requirements. (*Stancil v. Superior Court* (2021) 11 Cal.5th 381, 394–395.) Because proper service of a valid notice is an element of the cause of action, defects in the notice and service thereof are subject to demurrer. (*Attenello v. Basilious* (2022) 88 Cal.App.5th Supp. 1, 7–8; see Code of Civ. Proc., § 1166, subd. (a)(5) [complaint must allege method of service].)

Because the Complaint does not allege proper service of a valid notice, it fails to state a cause of action for unlawful detainer. And because the notice of termination is void, there is no manner in which the Complaint may be amended. Accordingly, once sufficient proof of proper notice is provided, the demurrer will be sustained without leave to amend.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim*** (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

POSTED: 3:00 PM